

**4-952. Petition to expunge arrest records and public records; upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Bernalillo

Second JUDICIAL DISTRICT COURT

In re Elena Marisol Trujillo, No.  
Petitioner.

**PETITION TO EXPUNGE ARREST RECORDS AND PUBLIC RECORDS UNDER  
NMSA 1978, SECTION 29-3A-4 [~~NMSA 1978~~]  
(Upon Release without Conviction)**

Petitioner, [ ] unrepresented by counsel/[ ] represented by counsel (*select one*), under NMSA 1978,  
Section 29-3A-4 [~~NMSA 1978~~], respectfully moves the Court to expunge the arrest records and  
public records related to the case and charge(s) below.

1. Information about Petitioner:

Date of Birth: 1990-03-14

Current Mailing Address: 745 Silver Avenue SW

City: Albuquerque State: NM Zip Code: 87102

Home Phone #: \_\_\_\_\_ Work Phone #: \_\_\_\_\_ Cell #: \_\_\_\_\_

Other names or aliases by which Petitioner has been known (*include prior names, nicknames,  
or aliases, especially if your arrest records may reflect a different name*):

2. [ ] Petitioner has no pending expungement cases in the Second Judicial District.  
[ ] Petitioner has the following pending expungement case or cases in the \_\_\_\_\_ Judicial  
District (*provide expungement case numbers for any expungement cases that may be currently  
pending before the \_\_\_\_\_ Judicial District Court*):

3. [ ] Petitioner has never applied for expungement and been denied.

[ ] Petitioner has applied for expungement and been denied in the following expungement  
cases (*provide the expungement case numbers*): \_\_\_\_\_

4. The following case(s) and record(s) are the subject of Petitioner's Petition to Expunge  
(Include additional pages, if necessary):

District Court case number(s): D-202-CR-2021-01532

Metropolitan/Magistrate/Municipal Court case number(s):

Law Enforcement Agency case number(s):

Arrest number(s):

5. The following appellate court cases(s) are related to Petitioner's Petition to Expunge:

Court of Appeals case number(s):

Supreme Court case number(s):

[5.] 6. Petitioner was released without conviction for the following charges: (Complete for each  
charge sought to be expunged. Include additional pages if necessary.)

(1) Date of arrest:

Name of offense and statute/ordinance number:

Final disposition of offense: (check one) ☐ acquittal or finding of not guilty ☐ nolle

prosequi ☐ no bill ☐ referral to pre-prosecution diversion program ☐ Order of Conditional

Discharge under Section 31-20-13 (1994) NMSA 1978 ☐ other dismissal/discharge

(explain):

Degree of offense, if known (e.g., misdemeanor, petty misdemeanor, etc.):

Date of final disposition:

☐ Check if additional pages attached.

[6.] 7. ☐ Petitioner has no cases related to the charges sought to be expunged.

☐ The following cases are related to the charges sought to be expunged: (Include case names  
and numbers for any cases that were joined either with a co-defendant or joined as the result  
of a plea.)

[7.] 8. ☐ It has been one (1) year or more since the date of the final disposition of the charge(s)  
Petitioner seeks to expunge.

[8.] 9. ☐ There is no other charge or proceeding pending against Petitioner.

[9.] 10. Petitioner asks this Court for an Order to Expunge arrest records and public records in  
the custody of the following agencies:

☐ District Court in the Second Judicial District;

- ☐ \_\_\_\_\_ County Sheriff's Department;  
☐ District Attorney for the \_\_\_\_\_ Judicial District;  
☐ New Mexico Department of Public Safety  
☐ Law Enforcement Agency (*name of agency that arrested Petitioner*); \_\_\_\_\_  
☐ Metropolitan/Magistrate/Municipal Court in \_\_\_\_\_ (*location*);  
☐ New Mexico State Police Investigations Bureau  
☐ Other \_\_\_\_\_

~~[10.]~~ 11. ☐ A copy of this Petition, when filed with the Court, will be mailed by first class United States mail to:

- (1) The District Attorney in the \_\_\_\_\_ Judicial District  
(The District Attorney in the Judicial District where Petitioner's charge originated)

\_\_\_\_\_  
(Address)

- (2) The New Mexico Department of Public Safety  
P.O. Box 1628, Santa Fe, New Mexico 87504-1628

~~[11.]~~ 12. The charges sought to be expunged were originally disposed of or originated in (*select one*)

- ☐ District Court in the Second Judicial District  
☐ Metropolitan Court in \_\_\_\_\_ (*location*)  
☐ Magistrate Court in \_\_\_\_\_ (*location*)  
☐ Municipal Court in \_\_\_\_\_ (*location*)

~~[12.]~~ 13. Petitioner has included Petitioner's State of New Mexico, Department of Public Safety Record of Arrest and Prosecution (RAP) sheet, dated no later than ninety (90) days prior to the filing of the petition.

~~[13.]~~ 14. Petitioner has also included the following documentation related to Petitioner's criminal history:

- a. Docket sheet, arrest sheet, or other record detailing the offenses Petitioner is seeking to expunge;  
b. Documentation showing final disposition of the charges Petitioner is seeking to expunge;  
c. Other: \_\_\_\_\_  
(*list any other documentation provided with the petition*).

~~[14.]~~ 15. ☐ Petitioner wishes to attend any hearings in this matter by telephonic or other electronic means as provided for in Rule 1-077.1(J) NMRA.

SIGNATURE SECTION

**I, Petitioner, affirm under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.**

Elena Marisol Trujillo

Printed name of Petitioner

Date

Signature of Petitioner

745 Silver Avenue SW, Albuquerque, NM 87102

Mailing Address

Telephone Number

Email

Attorney Name (*if applicable*)

Date

Attorney Signature

Mailing Address

Telephone Number

Email

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases filed on or after December 31, 2025.]

**4-955. Certificate of service; expungement of records upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Bernalillo

Second JUDICIAL DISTRICT COURT

In re Elena Marisol Trujillo, Petitioner. No.

**CERTIFICATE OF SERVICE**

***(Required for Petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))***

I hereby certify that on the \_\_\_\_\_ (day) of \_\_\_\_\_ (month) \_\_\_\_\_ (year), an endorsed copy of the Petition to Expunge New Mexico Arrest Records and Public Records under Section 29-3A-4 NMSA 1978, filed on \_\_\_\_\_ (date), and this Certificate of Service were mailed via first-class United States mail to:

- ☐ The New Mexico Department of Public Safety  
P.O. Box 1628, Santa Fe, New Mexico 87504-1628
- ☐ The district attorney in the \_\_\_\_\_ Judicial District  
\_\_\_\_\_  
(Address)

☐ Petitioner is pro se **OR** ☐ Petitioner is represented by counsel

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

\_\_\_\_\_  
Petitioner Printed Name

\_\_\_\_\_  
Attorney Printed Signature

\_\_\_\_\_  
Petitioner Address

\_\_\_\_\_  
Attorney Address

\_\_\_\_\_  
Petitioner Telephone Number

\_\_\_\_\_  
Attorney Telephone Number

\_\_\_\_\_  
Petitioner Signature

\_\_\_\_\_  
Attorney Signature

\_\_\_\_\_  
Date of Signature

\_\_\_\_\_  
Date of Signature

## USE NOTES

This certificate of service must be filed with the district court.

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

**4-959. Notice of completion of briefing; upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Bernalillo

Second JUDICIAL DISTRICT COURT

In re Elena Marisol Trujillo, No.  
Petitioner.

**NOTICE OF COMPLETION OF BRIEFING**

*(for use with petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))*

Petitioner hereby notifies the Court, in accordance with Rule 1-077.1(H) NMRA, that briefing is complete as to Petitioner's Petition to Expungement Arrest Records and Public Records and that the Petition is ready for decision. Petitioner further states:

☐ Notice of the Petition has been provided via first-class United States mail to:

☐ The District Attorney in the \_\_\_\_\_ Judicial District;

☐ The New Mexico Department of Public Safety.

☐ At least sixty-three (63) days have passed since Petitioner mailed the Petition to the parties entitled to notice.

☐ The District ~~[Attorney]~~ Attorney's Response[:]

☐ The district attorney has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ The district attorney has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from the district attorney.

☐ The New Mexico Department of Public ~~[Safety]~~ Safety's (DPS) Response[:]

☐ DPS has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ DPS has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from DPS.

☐ Petitioner has included an Affirmation in Support of Expungement (Form 4-960.2 NMRA) with this Notice of Completion of Briefing.

1  
2 Elena Marisol Trujillo  
3 Printed name of Petitioner  
4  
5 Signature of Petitioner  
6 745 Silver Avenue SW, Albuquerque, NM 87102  
7 Mailing Address  
8  
9 Telephone Number  
10  
11 Date

13  
14 Attorney Name (*if applicable*)  
15  
16 Attorney Signature  
17  
18 Mailing Address  
19  
20 Telephone Number  
21  
22 Email

23 **CERTIFICATE OF SERVICE**

24 I hereby certify that on this \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_ this Notice of  
25 Completion of Briefing was served by United States first class mail on the following:

26  
27 (The District Attorney in the \_\_\_\_\_ Judicial District)  
28  
29 (Address)  
30  
31 (Telephone)

32  
33  
34 **AND**

35  
36 **New Mexico Department of Public Safety**  
37 P.O. Box 1628, Santa Fe, New Mexico, 87504-1628  
38 (505) \_\_\_\_\_  
39  
40  
41

42 \_\_\_\_\_  
43 Signature of person sending paper



Date of signature

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]

**4-960.2. Affirmation in support of expungement; upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO  
COUNTY OF Bernalillo  
Second JUDICIAL DISTRICT COURT

In re Elena Marisol Trujillo, Petitioner. No.

**AFFIRMATION IN SUPPORT OF EXPUNGEMENT**  
***(Upon Release without Conviction)***

I, Elena Marisol Trujillo, (*Petitioner name*), am requesting the expungement of records under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction), and hereby affirm the following:

☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

**OR**

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico state court:

\_\_\_\_\_  
\_\_\_\_\_

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state court: \_\_\_\_\_

\_\_\_\_\_

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

\_\_\_\_\_  
\_\_\_\_\_

**I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.**

\_\_\_\_\_  
(*Petitioner Signature*) Elena Marisol Trujillo  
(*Print Name*)

745 Silver Avenue SW, Albuquerque, NM 87102  
*Street Address City State Zip Code*

\_\_\_\_\_  
(*Telephone*)

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

**4-960.1. Notice of hearing.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Bernalillo

Second JUDICIAL DISTRICT COURT

In re Elena Marisol Trujillo, Petitioner. No.

**NOTICE OF HEARING**

Petitioner may be entitled to expungement of arrest records or public records under the Criminal Record Expungement Act, Sections 29-3A-1 to -9 NMSA 1978. A hearing in this matter is set before the Honorable \_\_\_\_\_ as follows:

1. Date of Hearing: \_\_\_\_\_
2. Time of Hearing: \_\_\_\_\_
3. Length of Hearing: \_\_\_\_\_
4. Place of Hearing: \_\_\_\_\_  
\_\_\_\_\_
5. Matter(s) to be heard: \_\_\_\_\_

HONORABLE \_\_\_\_\_

By \_\_\_\_\_

TCAA

**PARTIES ENTITLED TO NOTICE:**

Elena Marisol Trujillo

Petitioner Name

745 Silver Avenue SW, Albuquerque, NM 87102

Petitioner Address

\_\_\_\_\_  
Petitioner Telephone Number

\_\_\_\_\_  
Petitioner Email Address

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Name

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Agency (if applicable)

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Address

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Telephone Number

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Email Address

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Name

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Agency (if applicable)

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Address

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Telephone Number

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Email Address

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Name

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Agency (if applicable)

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Address

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Telephone Number

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Email Address

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Name

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Agency (if applicable)

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Address

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Telephone Number

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Email Address

USE NOTES

For the purpose of this form, the parties entitled to notice include the petitioner and any party that filed and served objections to the petition for expungement pursuant to Rule 1-077.1(G)(1) NMRA no later than sixty-three (63) days from the date of service. See Rule 1-077.1(G)(1) (providing sixty (60) days for a party entitled to notice to file an objection); Rule 1-077.1(E)(3) NMRA (providing for service by mail for actions filed pursuant to Rule 1-077.1); Rule 1-006(C) (providing for three (3) additional days where service is made by mail).

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

**4-222. Application for free process and affidavit of indigency.**

[For use with Supreme Court General Rule 23-114 NMRA]

**STATE OF NEW MEXICO**

**COUNTY OF** Bernalillo

Second Judicial District **COURT**

Elena Marisol Trujillo, Petitioner,

v.

No. \_\_\_\_\_

\_\_\_\_\_, Respondent.

**APPLICATION FOR FREE PROCESS AND AFFIDAVIT OF INDIGENCY**

I request that the court enter an order permitting me to file this case without prepayment of fees and costs and give upon my oath or affirmation the following statement.

My marital status is: Single \_\_\_\_ Married \_\_\_\_ Divorced \_\_\_\_ Separated \_\_\_\_ Widowed \_\_\_\_

I request interpretation services: \_\_\_\_ yes \_\_\_\_ no (If yes, please describe what you need)

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**INFORMATION ABOUT MY FINANCES (check all that apply to you and fill in the blanks):**

**A. PUBLIC ASSISTANCE**

\_\_\_\_ I do not receive public assistance (If you check this blank, go directly to Section B EMPLOYMENT/UNEMPLOYMENT).

\_\_\_\_ I currently receive the following public assistance in \_\_\_\_\_ County (please check all applicable public assistance programs):

- \_\_\_\_ Temporary Assistance for Needy Families (TANF)
- \_\_\_\_ Food Stamps
- \_\_\_\_ Medicaid (for myself)
- \_\_\_\_ General Assistance (GA)
- \_\_\_\_ Supplemental Security Income (SSI)
- \_\_\_\_ Public Housing
- \_\_\_\_ Disability Security Income (DSI)
- \_\_\_\_ Department of Health Case Management Services (DHMS)
- \_\_\_\_ Other (please describe \_\_\_\_\_)

**B. EMPLOYMENT/UNEMPLOYMENT**

\_\_\_\_\_ I am currently unemployed and have been unemployed for \_\_\_\_ months in the past year. I am unemployed because \_\_\_\_\_.

\_\_\_\_\_ I receive unemployment benefits in the amount of \$\_\_\_\_\_ per month.

\_\_\_\_\_ I have no income because I am unemployed.

\_\_\_\_\_ I am employed. I am paid \$\_\_\_\_\_ per hour and work \_\_\_\_\_ hours per week.

My employer's name, address and phone number is:

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

\_\_\_\_\_ I am married, and my spouse is unemployed and has been unemployed for \_\_\_\_ months in the past year because \_\_\_\_\_.

\_\_\_\_\_ My spouse receives unemployment benefits in the amount of \$\_\_\_\_\_ per month.

\_\_\_\_\_ I am married, and my spouse is employed. My spouse is paid \$\_\_\_\_\_ per hour and works \_\_\_\_\_ hours per week.

My spouse's employer's name, address and phone number is:

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**C. OTHER SOURCES OF INCOME** (*Check all that apply*)

\_\_\_\_\_ I have income from another source not mentioned above.

\_\_\_\_\_ Child Support \$\_\_\_\_\_

\_\_\_\_\_ Alimony \$\_\_\_\_\_

\_\_\_\_\_ Investments \$\_\_\_\_\_

\_\_\_\_\_ Community property from my spouse \$\_\_\_\_\_

\_\_\_\_\_ Other \_\_\_\_\_ \$\_\_\_\_\_

\_\_\_\_\_ I do not have any other sources of income.

\_\_\_\_\_ I am married, and my spouse has income from another source not mentioned above.

\_\_\_\_\_ Child Support \$\_\_\_\_\_

\_\_\_\_\_ Alimony \$\_\_\_\_\_

\_\_\_\_\_ Investments \$\_\_\_\_\_

\_\_\_\_\_ Other \_\_\_\_\_ \$\_\_\_\_\_

\_\_\_\_\_ Other \_\_\_\_\_ \$\_\_\_\_\_

\_\_\_\_\_ I am married, and my spouse does not have any other sources of income.

\_\_\_\_\_ Another adult contributes to household income in the following amount: \$\_\_\_\_\_



**D. OTHER ASSETS (Please list other assets owned by you or your spouse that can be turned into cash. Do not include money you have in retirement accounts):**

Cash on hand \$ \_\_\_\_\_  
Bank accounts \$ \_\_\_\_\_  
Income tax refund \$ \_\_\_\_\_  
Other assets (describe below):  
\_\_\_\_\_ \$ \_\_\_\_\_  
\_\_\_\_\_ \$ \_\_\_\_\_

**IF YOU DO NOT HAVE ACCESS TO YOUR OWN OR YOUR SPOUSE'S INCOME OR ASSETS, EXPLAIN WHY.**

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**E. MONTHLY EXPENSES**

House Payment/Rent \$ \_\_\_\_\_  
Utilities \$ \_\_\_\_\_  
Telephone \$ \_\_\_\_\_  
Groceries (after food stamps) \$ \_\_\_\_\_  
Car Payment(s) \$ \_\_\_\_\_  
Gasoline \$ \_\_\_\_\_  
Insurance \$ \_\_\_\_\_  
Child Care \$ \_\_\_\_\_  
Student and Consumer Loans \$ \_\_\_\_\_  
Court-ordered family support obligations \$ \_\_\_\_\_  
Other court-ordered payments \$ \_\_\_\_\_  
Medical expenses \$ \_\_\_\_\_  
Other \_\_\_\_\_ \$ \_\_\_\_\_

**F. HOUSEHOLD**

I live at 745 Silver Avenue SW, Albuquerque, NM 87102 \_\_\_\_\_,  
and the head of the household is \_\_\_\_\_.

Other than myself, the other members of the household are:

| <u>Name</u> | <u>Age</u> | <u>Employment</u> | <u>I Support</u> |
|-------------|------------|-------------------|------------------|
| _____       | _____      | _____             | ( )              |

|       |       |       |     |
|-------|-------|-------|-----|
| _____ | _____ | _____ | ( ) |
| _____ | _____ | _____ | ( ) |
| _____ | _____ | _____ | ( ) |
| _____ | _____ | _____ | ( ) |
| _____ | _____ | _____ | ( ) |
| _____ | _____ | _____ | ( ) |

***This statement is made under oath. I hereby state that the above information regarding my financial condition is correct to the best of my knowledge. I hereby authorize the Court to obtain information from financial institutions, employers, relatives, the federal internal revenue service and other state agencies. If at any time the Court discovers that information in this application for free process was false, misleading, inaccurate, or incomplete at the time the application was submitted, the Court may require me to pay for any costs or fees that were waived under an order of free process that was granted based on the information in this application.***

\_\_\_\_\_  
(Signature)

Elena Marisol Trujillo  
\_\_\_\_\_

(Print Name)

☒ Petitioner    ☐ Respondent

(Pro Se)

745 Silver Avenue SW  
\_\_\_\_\_

(Street Address)

Albuquerque, NM 87102  
\_\_\_\_\_

(City, State, Zip Code)

\_\_\_\_\_  
(Telephone)

State of \_\_\_\_\_ )

) ss

County of \_\_\_\_\_ )

Signed and sworn to (or affirmed) before me on \_\_\_\_\_ (date)  
by \_\_\_\_\_ (name of applicant).

\_\_\_\_\_  
Notary

My commission expires: \_\_\_\_\_

**IF YOU ARE REPRESENTED BY AN ATTORNEY, YOUR ATTORNEY MUST SIGN THE FOLLOWING CERTIFICATE.**

I, \_\_\_\_\_, hereby certify that I have not received any attorney  
(Name of attorney)

fee to represent \_\_\_\_\_. If any attorney fee is paid to me, I understand  
(Name of applicant)

that I shall pay to the court clerk from such attorney fee any court fees and costs that may  
be waived by the court.

\_\_\_\_\_  
(Attorney signature)

\_\_\_\_\_  
Address

\_\_\_\_\_  
City, State, Zip Code

\_\_\_\_\_  
Telephone/Fax Number

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011.]